

Summary - Digital Personal Data Protection Rules, 2025

The Ministry of Electronics and Information Technology (MeitY) notified the Digital Personal Data Protection Rules, 2025 (DPDP Rules) on November 13th, 2025. The rules were framed under the Digital Personal Data Protection Act, 2023 (DPDPA) and are now operationalising India's first data governance legislation in a phased manner.

The phased rollout of the DPDPA and the DPDP Rules is as follows:

Time Period	DPDPA Provisions that come into force	DPDP Rules that come into force
13 th November 2025	Section 1(2)	Rule 1
	Section 2	Rule 2
	Sections 18-26	Rules 17-21
	Section 35	
	Section 38-43	
	Sections 44(1) and 44(3)	
13 th November 2026	Section 6(9)	Rule 4
	Section 27(1)(d)	
13 th March 2027	Sections 3-5	Rule 3
	Sections 6(1)-6(8), 6(10)	Rules 5-16
	Sections 7-10	Rule 22
	Sections 11-17	Rule 23
	Section 27 [except 27(1)(d)]	
	Sections 28-34	
	Section 36	
	Section 37	
	Section 44(2)	

Definitions [Rule 2]

- "Act" means the DPDPA;
- "techno-legal measures" means as referred to under Rules 20 and 22 of the DPDP Rules;
- "user account" means the online account registered by the Data Principal with the Data Fiduciary, and includes any profiles, pages, handles, email address, mobile number and other similar presences by means of which such Data Principal is able to access the services of such Data Fiduciary; and
- "verifiable consent" means a consent as specified in Rules 10 or 11 of the DPDP Rules.

Corresponding Section in DPDPA: Section 2 (Definitions)

Notice [Rule 3]

The notice by a Data Fiduciary to a Data Principal must be **clear and** understandable without relying on other information. The notice must also explain in simple terms what is needed from the Data Principal for informed consent, including the specific personal data being collected, the purpose(s) of processing and what goods and/or services would be provided because of this processing.

The notice should also provide easy access to a link to the Data Fiduciary's website/application, options to withdraw consent (as easily as the consent was given), ways to exercise a Data Principal's rights under the DPDPA, and how to file complaints with the Data Protection Board (Board).

Corresponding Sections of DPDPA: Section 5 (Notice), Section 6 (Consent)

Contact Point and Data Principal Rights [Rule 9 and 14]

A Data Fiduciary must clearly display on its website/app, and include in responses to rights requests, the business contact of its Data Protection Officer (if appointed) or another authorised person who can answer questions about personal data processing.

Corresponding Section of DPDPA: Section 8(9) (Publication of details by Data Fiduciary for grievance redressal)

To help Data Principals exercise their rights, every Data Fiduciary and (where relevant) Consent Manager must clearly publish on their website/app how a Data Principal can submit a rights request, and any details or identifiers (customer ID, application number, reference number, enrolment ID, email, mobile number, or licence number) required to verify the Data Principal. Every Data Fiduciary and Consent Manager must also clearly publish their grievance redressal system on their website/app and ensure it can respond within a reasonable time, no more than 90 days, by implementing suitable technical and organisational measures.

A Data Principal may also exercise her rights by submitting a request to the Data Fiduciary to whom she previously gave consent, using the specified method and providing the required details. She may nominate one or more individuals to exercise her rights on her behalf, as per the Data Fiduciary's terms of service and applicable law, using the required method and details.

Corresponding Sections of DPDPA: Chapter III (Rights and Duties of Data Principal)

Security Measures, Breach Notifications and Data Retention [Rules 6, 7 and 8]

A Data Fiduciary must protect all personal data it holds or controls, including data processed by a Data Processor, by implementing reasonable security safeguards. At a minimum, these safeguards must include encryption, masking, and tokenisation of personal data, alongside access controls to limit system access for Data Fiduciaries

and Processors. Regular monitoring and logging are essential to detect unauthorised access, with reviews to address any incidents. Ensuring data continuity through regular backups is crucial in the event of loss or compromise. Logs and relevant personal data should be retained for one year to manage unauthorised access, unless other legal requirements dictate a different duration. Contractual clauses should require Data Processors to implement necessary security safeguards, supported by technical and organisational measures for effective implementation.

Non-compliance with the provision under the DPDPA and the DPDP Rules attracts a penalty of INR 250 Crore.

Corresponding Section of DPDPA: Section 8(4) (Technical and organisational measures to be implemented by Data Fiduciary)

If a Data Fiduciary discovers a personal data breach, it must promptly inform affected individuals in clear language through their registered channel or user account. The notice should explain what happened, potential impacts, steps taken to mitigate the risk, what individuals can do, and provide a contact for any queries. The Data Fiduciary must also notify the Board immediately with a description of the breach and, within 72 hours (or as allowed), share detailed information, causes, mitigation measures, prevention steps, and a report on how individuals were informed.

Failure to do so attracts penalties of up to INR 200 Crore.

Corresponding Section of DPDPA: Section 8(5) (Protection of data by Data Fiduciary), Section 8(6) (Intimation of personal data breach by Data Fiduciary)

A Data Fiduciary must erase personal data once the specified purpose is no longer served, unless retention is required by law. If the Data Principal does not exercise her rights within the period set out in the Third Schedule, the data must be deleted.

At least 48 hours before deletion, the Data Fiduciary must notify the Data Principal, giving them the option to log in or contact the Data Fiduciary to continue the purpose. Additionally, all personal data, related traffic data, and processing logs must be retained for at least one year after processing, unless a longer period is required by law.

Corresponding Section of DPDPA: Section 8(7) (Erasure of data by Data Fiduciary or Data Processor), Section 12(3) (Right to erasure of personal data)

Relevant Schedule: Third Schedule

Processing by State and Exemptions [Rules 5 and 16]

The processing of personal data for the provision or issue of subsidy, benefit, service, certificate, license or permit by the State and its instrumentalities has to be done according to the specifications in the Second Schedule. In this rule and the Second Schedule, references to subsidies, benefits, services, certificates, licenses, or

permits mean those provided by the State or its agencies under law, under government policy or instructions using executive power, or funded through public money from government accounts, including the Consolidated Fund of India, State funds, or funds of local authorities.

Corresponding Section of DPDPA: Section 7 (Certain legitimate uses)

If personal data is processed for research, archiving, or statistical purposes, the DPDPA does not apply. This exemption, however, is only permitted if the data processing is in accordance with the DPDPA.

Corresponding Section of DPDPA: Section 17 (Exemptions)

Relevant Schedule (for both instances): Second Schedule

Verifiable Consent of Children and Persons with Disabilities [Rules 10, 11 and 12]

A Data Fiduciary must put in place proper technical and organisational measures to ensure verifiable parental consent is obtained before processing a child's personal data. The Data Fiduciary must also take steps to confirm that the person claiming to be the parent is an identifiable adult, if needed for legal compliance. This can be verified through reliable identity and age details already available with the Data Fiduciary, or identity and age details voluntarily provided directly by the individual, or through a virtual token linked to those details, issued by an authorised entity.

When a Data Fiduciary seeks consent from someone claiming to be the lawful guardian of a person with disability (someone with long-term impairments, who despite support, cannot make legally binding decisions or someone with autism, cerebral palsy, mental retardation, or multiple disabilities, who also cannot make legally binding decisions without support), it must verify through due diligence that the guardian was appointed under a valid legal process. This means the guardian must be appointed by a court, a designated authority (as defined under Section 15 of the Rights of Persons with Disabilities Act, 2016), or a local-level committee (formed under Section 13 of the National Trust Act, 1999) established under the applicable guardianship law.

The applicable guardianship laws would be:

- a) For someone with long-term impairments, who, despite support, cannot make legally binding decisions- Rights of Persons with Disabilities Act, 2016 and its rules.
- b) For someone with autism, cerebral palsy, mental retardation, or multiple disabilities, who also cannot make legally binding decisions without support: National Trust Act, 1999 and its rules.

Section 9(1) (obtain verifiable consent of parent or lawful guardian) and 9(3) (no tracking or behavioural monitoring) of the DPDPA do not apply when a child's

personal data is processed by the types of Data Fiduciaries listed in Part A of the Fourth Schedule, as long as they follow the conditions in that Part. The same provisions do not apply when a child's personal data is processed for the purposes listed in Part B of the Fourth Schedule, subject to the conditions in that Part.

Corresponding Section of DPDPA: Section 9 (Processing of personal data of children)

Relevant Schedule: Fourth Schedule

Additional obligations of Significant Data Fiduciary [Rule 13]

A Significant Data Fiduciary must conduct a Data Protection Impact Assessment (DPIA) and a data audit every 12 months, starting from when it is designated as a Significant Data Fiduciary.

The person conducting the DPIA and audit must submit a report with key findings to the Data Protection Board (DPB).

The Significant Data Fiduciary must ensure, through due diligence, that any technical tools or algorithmic systems it uses to handle personal data do not pose risks to Data Principals' rights. It must also ensure that certain categories of personal data, as specified by the Central Government based on committee recommendations, are not transferred outside India, including related traffic data.

A breach of additional obligations by a Significant Data Fiduciary attracts a penalty of up to INR 150 Crore per instance.

Corresponding Section of DPDPA: Section 2(z) (Definition of Significant Data Fiduciary), Section 10 (Additional Obligations of Significant Data Fiduciary).

Registration and obligations of Consent Manager [Rule 4]

Any person who meets the eligibility conditions in Part A of the First Schedule may apply to the DPB for registration as a Consent Manager by submitting the required details and documents as specified on the DPB's website. After receiving the application, the DPB may conduct inquiries to verify whether the applicant meets the required conditions.

If satisfied, the DPB will register the applicant, notify them, and publish their details on its website. If not satisfied, the DPB will reject the application and inform the applicant of the reasons.

A registered Consent Manager must comply with all obligations listed in Part B of the First Schedule. The DPB may require the Consent Manager to provide any information necessary for enforcing these rules.

If the Board believes that a Consent Manager is not following the required conditions or obligations, it may, after providing the Consent Manager with an opportunity to be

heard, notify them of the non-compliance and direct them to take corrective measures. If the Board considers it necessary to protect Data Principals, it may, after giving the Consent Manager an opportunity to be heard and recording reasons in writing, either suspend or cancel the Consent Manager's registration, and issue directions needed to safeguard Data Principals.

Corresponding Section of DPDPA: Section 6(7) to 6(9) (Consent Manager)

Relevant Schedule: First Schedule

Transfer of personal data outside the territory of India [Rule 15]

Personal data processed by a Data Fiduciary under the DPDPA may be transferred outside India, provided the Data Fiduciary complies with requirements set by the Central Government regarding data availability to foreign states or their controlled entities.

Corresponding Section of DPDPA: Section 16 (Processing of personal data outside India)

Data Protection Board

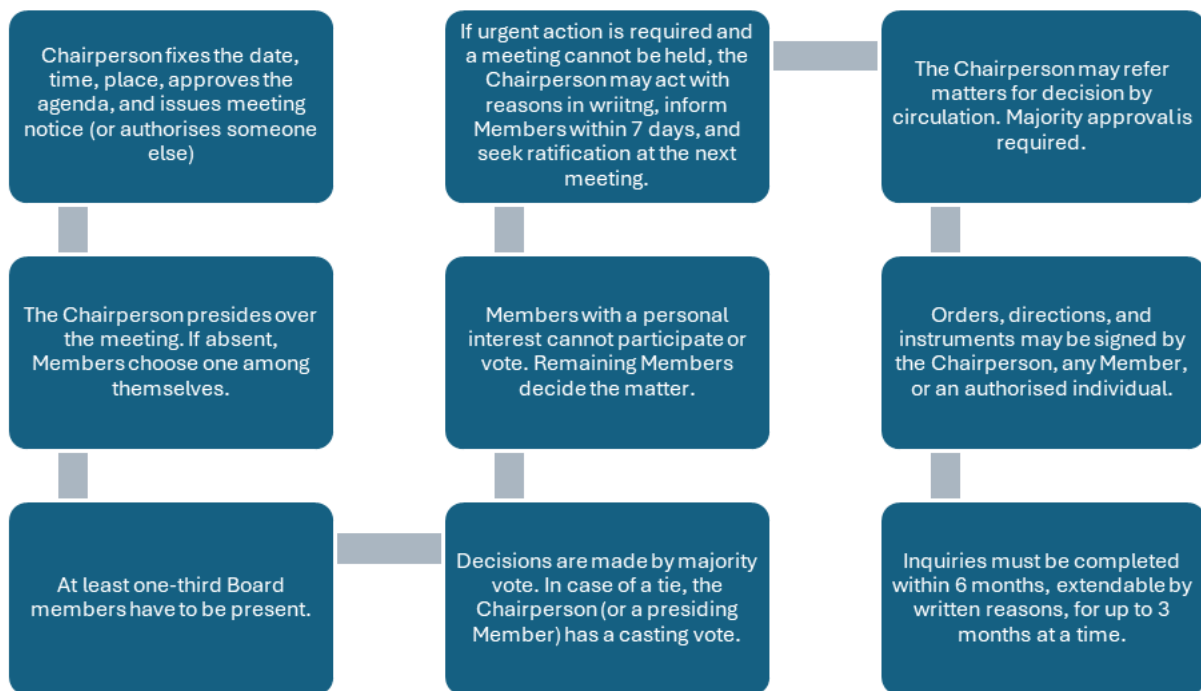
A Search-cum-Selection Committee is formed by the Central Government for the appointment of Chairperson and Members of the DPB. For appointing the Chairperson, the Search-cum-Selection Committee will be chaired by the Cabinet Secretary and will include the Secretaries of Legal Affairs and IT, as well as two experts. For Members, it will be chaired by the Secretary of IT, including the Secretary of Legal Affairs, plus two experts. The Committee recommends candidates, and the Central Government makes the final appointments. The Committee's decisions cannot be challenged due to vacancies or constitutional defects.

Corresponding Section of DPDPA: Section 19 (Composition and qualifications for appointment of Chairperson and Members)

The Chairperson and Members receive salary, allowances, and service conditions as per the Fifth Schedule.

Corresponding Section of DPDPA: Section 20 (Salary allowances payable to and term of office)

Relevant Schedule: Fifth Schedule



Corresponding Sections of DPDPA: Section 23 (Proceedings of Board), Section 27 (Powers and Functions of Board), Section 28 (Procedure to be followed by Board).

The DPB will operate as a digital office, utilising techno-legal measures to minimise physical presence, but it retains the authority to summon and examine individuals. The Office will be in Delhi-NCR.

The DPB can appoint officers/employees with the approval of the Central Government, and their service terms are governed by the Sixth Schedule.

Corresponding Section of DPDPA: Section 24 (Officers and employees of Board), Section 25 (Members and officers to be public servants)

Relevant Schedule: Sixth Schedule

Appellate Tribunal and Information Request by Central Government [Rule 22 and 23]

According to the press release by MeitY, the Telecom Disputes Settlement and Appellate Tribunal will hear appeals against the decisions of the DPB.

Any person aggrieved by a Board order can appeal to the Appellate Tribunal in digital form. The appeal must include the prescribed fee (same as under the Telecom Regulatory Authority of India Act, 1997), payable digitally via UPI or other RBI-approved systems, unless waived by the Chairperson. The Tribunal will follow the principles of natural justice, rather than the Civil Procedure Code, and may establish its own process. It will operate as a digital office, utilising techno-legal measures to

conduct proceedings without requiring physical presence, while retaining the power to summon and examine individuals.

Corresponding Section of DPDPA: Chapter VII (Appeal and Alternate Dispute Resolution)

The Central Government may require any Data Fiduciary or intermediary (as defined under the Information Technology Act, 2000) to provide specified information within a given timeframe for purposes listed in the Seventh Schedule. If sharing this information could harm India's sovereignty or security, the Government may direct that it is not disclosed to the Data Principal or anyone else without prior written approval from the authorised person.

Corresponding Section of DPDPA: Section 36 (Power to call information), Section 37 (Power of Central Government to issue directions)

Relevant Schedule: Seventh Schedule